

National Diagnostic Report

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1. Executive Summary

Hate crimes and hate speech continue to pose a significant threat to the safety of individuals and the cohesion of Spanish society. According to the latest reports from the Ministry of the Interior, racist and xenophobic incidents remain the most frequently reported type of hate crime in Spain, with a total of 804 incidents in 2024. Although these figures have decreased slightly compared to the previous year, hate crimes and discrimination against LGBTI people remain very common, with 528 incidents reported, reflecting persistent social intolerance towards sexual and gender minorities. Crimes against women on the basis of sex or gender, although less frequent (181 incidents), continue to reflect structural inequalities in Spanish society.

Despite a 51.3% reduction in crimes against the Roma community, Roma communities remain particularly vulnerable due to persistent structural discrimination and social stigmatization. Hate crimes against minorities are increasingly committed through digital channels, such as social media and online platforms. In 2024, the online dissemination of hate speech targeting ethnic and sexual minorities increased significantly. Racist and xenophobic crimes online increased by 47.37%, while anti-LGBTI hate speech increased by 22.41%.

Judicial practice in Spain reflects the difficulty of proving discriminatory motivation. Courts rely heavily on circumstantial evidence, such as statements, symbols, prior behavior, and social media activity, to establish harmful intent. The Supreme Court, in ruling 314/2015, and the Constitutional Court have repeatedly emphasized that motives of hatred must be logically inferred from verified facts, highlighting the central role of judicial reasoning in hate crime convictions.

Institutional responses to hate crimes include specialized prosecutors' offices, observatories, and civil society organizations, which provide monitoring, victim support, and public awareness initiatives. However, significant shortcomings remain, such as underreporting due to fear of reprisals, mistrust of authorities, lack of resources, and insufficient specialized training for police and judicial personnel. These shortcomings reduce the effectiveness of legal protections and limit victims' access to justice.

Preliminary recommendations focus on improving reporting mechanisms, expanding training programs for professionals, optimizing data collection, preventing secondary victimization, and updating legislation to respond to new forms of hate crimes, including online harassment. Special attention is also needed to address patterns of hate crimes specific to the Roma population and systemic anti-Gypsyism.

2. Introduction

In Spain, hate crimes are not only not declining, but are increasing significantly. This is indicated by the Report of the Attorney General's Office, which notes an increase of almost 40% in proceedings initiated in 2024. In total, 477 pre-trial investigations were initiated and 293 indictments were filed, compared to 210 the previous year.

This increase is largely due to the application of new criteria for punishing discriminatory insults with public humiliation, regulated in Article 510.2 a) of the Criminal Code, which protects the dignity of individuals. Charges for this crime rose from 85 in 2023 to 162 in 2024, almost double.

The report details that racism and xenophobia are the most frequent grounds for discrimination, followed by sexual orientation and gender identity. In the indictments filed, racism and xenophobia appear in 121 cases, while sexual orientation and gender identity appear in 119. Thus, compared to 2023, accusations based on the former increased by 55%, while those related to sexual orientation almost doubled. There was also an increase in anti-Semitism, with 33 cases in 2024 compared to 26 the previous year.

In addition, 173 judgments were handed down for hate crimes in 2024, 10% more than in 2023. Of these, 129 were convictions. It is important to note that these statistics only reflect the number of sentences handed down by courts and tribunals in 2024, many years after the crimes were committed. Therefore, they should not be compared with the number of complaints filed that same year.

The Public Prosecutor's Office stresses the importance of strengthening support for victims and collaboration with associations and public administrations. In the last year alone, the Hate Crimes and Discrimination Unit held 172 meetings with specialized groups and organizations, an effort that seeks to "provide a more effective and responsive response." It collaborates with the Spanish Observatory on Racism and Xenophobia (OBERAXE), making this body a "platform for knowledge and analysis" for designing public policies against racism and intolerance. It also participates in the work of the National Office for Hate Crimes and Discrimination (ONDOD), within the framework of the II Action Plan against Hate Crimes, together with the Interior Ministry, the security forces, and social groups. In addition, the document highlights the coordination with the Higher Sports Council to address violence and discrimination in soccer.

Another area of action has been specialized training. Throughout the year, courses and workshops were organized for prosecutors, police officers, and social professionals. These included conferences on hate crimes from a gender perspective, practical workshops with LGBTBI associations, and the development of a guide for police intervention with people with intellectual disabilities, with the aim of protecting particularly vulnerable victims.

3. Methodology

The research methodology for this report combined multiple approaches to provide a comprehensive and nuanced understanding of hate crimes in Spain. First, documentary research was conducted, reviewing criminal legislation, anti-discrimination laws, ministerial

reports from the Ministry of the Interior, and civil society publications from organizations such as FELGTB, Oberaxe, SOS-Racismo, and the RAIS Foundation. This allowed for a detailed analysis of the legal and institutional frameworks and current practices.

A jurisprudential analysis was conducted to understand how Spanish courts interpret and apply hate crime legislation. Key cases, such as that of Criminal Court No. 3 of Donostia (2018) and Supreme Court ruling 314/2015, provided insight into the evidentiary requirements and judicial reasoning applied to establish discriminatory intent. Additional Constitutional Court rulings were analyzed to identify criteria for logical inference based on circumstantial evidence.

Statistical analysis was performed using official reports from the Ministry of the Interior, which included data on the number, type, and distribution of incidents; victim demographics; and regional differences. Special attention was paid to online hate incidents and the evolution of crimes against ethnic, sexual, and gender minorities.

This mixed-methods approach was chosen because it allows for the triangulation of legal, institutional, and quantitative evidence. In Spain, where underreporting is widespread and it is often necessary to infer motivation, the combination of these methodologies provides a comprehensive perspective on the challenges and trends in the detection, prosecution, and prevention of hate crimes

4. Legal Framework on Hate Crime and Hate Speech

4.1 Conceptual Framework: Definition of Hate Crime and Hate Speech

According to the OSCE (Organization for Security and Co-operation in Europe) definition, a hate crime is any criminal offense, including offenses against persons and property, where the victim, the location, or the object of the offense is selected because of its connection, relationship, affiliation, support, or actual or perceived membership in a group that may be based on race, national or ethnic origin, language, color, religion, age, physical or mental disability, sexual orientation, or other similar factors, whether real or perceived.

Hate crimes show contempt for the intrinsic dignity of human beings simply because they are human beings, which is why these crimes constitute an attack on the structural and fundamental elements of the constitutional order.

Human dignity is the foundation of political order and social peace. Constitutional Court Ruling 214/1991 of November 11. Human dignity forms the framework within which the exercise of fundamental rights must take place.

The Constitutional Court, in its ruling 714/1991 of November 11, recognizes collective human dignity:

"Hatred and contempt for an entire people or ethnic group (any people or any ethnic group) is incompatible with respect for human dignity, which can only be achieved if it is attributed equally to every person, every ethnic group, and every people."

Hate crime is based on the concept of discrimination. On the idea that a person or a group deserves different, unequal, or inferior treatment based on some intrinsic characteristic.

The first reason that explains the seriousness of hate crimes is that they show contempt for the dignity inherent in human beings simply because they are migrants, North Africans, black, Asian, Muslim, or homosexual, to name a few examples. In short, for possessing a quality that defines the person. By denying the dignity of certain people, their equal participation in society, and the free exercise of their rights, hate crimes constitute an attack on the structural and backbone elements of the constitutional order.

The second reason that highlights the seriousness of these crimes is that when a hate crime is committed, not only are the fundamental rights of the victim violated, but a message of intolerance and rejection is sent to all people who belong to the same group.

When a person is attacked because of their skin color or insulted because of their religion, all people with that skin color or who profess that religion may feel targeted and fear that they too will be attacked. In this way, hate crime is an attack on the dignity of the victim and also on that of the entire group to which they belong. The Constitutional Court (hereinafter TC), in its ruling 214/1991 of November 11, also recognizes collective human dignity.

Finally, the third reason for understanding the seriousness of hate crimes in our jurisdiction is that they violate several fundamental rights enshrined in the Spanish Constitution (hereinafter CE):

Article 1: Equality, one of the highest values of the legal system. Article 10: The dignity of the person and the free development of personality.

Article 14: The right to equality and non-discrimination.

Article 15: The right to life and physical and moral integrity.

Article 9.2 of the Spanish Constitution also establishes that it is the responsibility of public authorities to promote conditions that ensure the freedom and equality of individuals and the groups to which they belong are real and effective; to remove obstacles that prevent or hinder their full enjoyment; and to facilitate the participation of all citizens in political, economic, cultural, and social life. This places the prosecution of hate crimes and the elimination of discrimination as the responsibility of public administrations, as they are an obstacle to the full development of the constitutional rights of those who suffer them.

4.2. National Legal Framework: criminal law and complementary regulations

In Spain, hate crime does not appear as such in our Criminal Code. When we talk about hate crime, we are referring to a series of criminal offenses that describe behaviors motivated by discrimination that deserve legal reproach and establish penalties to punish them.

Article 22.4 of the Criminal Code, known as aggravating circumstances due to discrimination, establishes that the following are considered aggravating circumstances in criminal liability:

Committing the crime for racist or anti-Semitic reasons or other types of discrimination related to the victim's ideology, religion, or beliefs, ethnicity, race, or nationality, sex, age, sexual orientation or gender identity, gender, aporophobia, or social exclusion, the illness or disability suffered by the victim, regardless of whether such conditions or circumstances actually exist in the person against whom the conduct is directed.

This aggravating circumstance is applicable to any crime when it is proven that the discriminatory motivation was decisive in its commission. It implies a greater criminal reproach for violating the constitutional value of human dignity.

In order to apply this circumstance, it is necessary to prove not only the criminal act in question and the participation of the accused person, but also the condition of the victim and the discriminatory intent.

Supreme Court (hereinafter SC) ruling 1145/2006 of November 23 establishes that the aggravating circumstance is fundamentally subjective in nature: it belongs to the intimate sphere, and therefore can only be inferred by considering the elements of the surrounding environment in which the act was committed, according to the court. This means that the circumstances in which the act took place, the contextual elements, and the identity of both the victim and the aggressor must be investigated. These elements are included in the polarization indicators, which will be discussed in the section on evidence in hate crimes.

The Supreme Court therefore summarizes the elements to be taken into account when applying the aggravating circumstance of Article 22.4 of the Criminal Code in three aspects:

- 1.- The victim's membership of a vulnerable group.
- 2.- The accused's rejection of the group to which the victim belongs.
- 3.- There is no other cause that could explain the attack.

What characterizes this circumstance is that racism, anti-Semitism, or any discriminatory sentiment is the motive for committing the crime. Therefore, we are faced with an aggravating circumstance in terms of the burden of proof, a motivational element that can only be inferred from circumstantial evidence, as determined by the Supreme Court (ruling 314/2015 of May 4).

The aggravating circumstance does not apply when discrimination is already an element of the criminal offense, by virtue of the principle of inherence set forth in Article 67 of the Criminal Code. The aggravating circumstance, therefore, will not apply when the law has already taken into account the aspects included in the aggravating circumstance to describe or punish an offense or when it is so inherent to the crime that without its concurrence it could not be committed. There are, therefore, specific types of crime that incorporate discrimination as a constituent element, such as employment discrimination in Article 314, denial of benefits in the public sphere in Article 511, discrimination in the professional or

business sphere in Article 512, threats to groups in Article 170.1, and crimes against moral integrity in Article 173. With regard to this article, it should be noted that Supreme Court ruling 878/2008 of October 10 establishes that this article shall apply in the following two cases: a) Single, isolated conduct that is harmful to dignity, b) it would apply to acts of completely gratuitous violence perpetrated with the aim of harassing and humiliating the victim c) repeated or ongoing acts of harassment or humiliation of the person; torture under Article 174 when based on discrimination, the disclosure of secrets with aggravating circumstances when it affects sensitive data under Article 197, unlawful association under Article 515.4, genocide under Article 607, crimes against humanity under Article 607 bis, and crimes against freedom of conscience and religious feelings regulated in Articles 522 to 525.

With regard to hate speech, ECRI establishes that hate speech includes all forms of expression that propagate, incite, promote, or justify racial hatred, xenophobia, anti-Semitism, and other forms of hatred based on intolerance, including intolerance expressed by aggressive nationalism and ethnocentrism, discrimination and hostility against minorities, immigrants, and persons of immigrant origin.

Article 510 of the Criminal Code is the main tool for combating hate speech.

Article 510.1.a punishes with imprisonment of one to four years and a fine of 6 to 12 months those who publicly encourage, promote or incite, directly or indirectly, hatred, hostility, discrimination, or violence against a group or part of a group or a specific person because of their membership in that group on the basis of racist or anti-Semitic motives, ideology, religion or beliefs, family situation, ethnicity, race, national origin, sex, sexual orientation or identity, gender, or disability.

The basis for this crime is the danger of increased hostility towards certain particularly vulnerable groups and the threat to their existential security. It is a crime of abstract danger, i.e., it is not necessary for the provocation or incitement to hatred to lead to acts of violence or discrimination against specific individuals or groups; it is sufficient for violence or discrimination to be incited or provoked for the crime to be committed. If a result were to occur, we would be dealing with a case of perpetration by inducement. In order to consider that this crime has been committed, it is not enough to express hateful opinions or ideas; it is necessary to incite or encourage the subsequent commission of discriminatory acts, so that there is a real risk, even if only potential, that these acts will be carried out. Indirect incitement must have sufficient potential to put the groups involved at risk.

Article 510.1.b imposes prison sentences of one to four years and fines of 6 to 12 months on those who produce, prepare, possess for the purpose of distribution, provide access to third parties, distribute, disseminate, or sell writings or any other type of material or media that, due to their content, are suitable for encouraging, promoting, or inciting, directly or indirectly, hatred, hostility, discrimination, or violence against a group, a part of a group, or against a specific person because of their membership in that group, for racist, anti-Semitic, or other reasons related to ideology, religion, or beliefs, family situation, the membership of its members in an ethnic group, race, or nation, their national origin, sex, sexual orientation, or gender identity, for reasons of gender, illness, or disability. And Article 510.1.c punishes those who publicly deny, seriously trivialize, or glorify crimes of genocide, crimes against humanity, or crimes against persons and property protected in the event of armed conflict, or glorify their perpetrators, when they have been committed against a group or part of a

group, or against a specific person because of their membership in that group, for racist, anti-Semitic, or other reasons related to ideology, religion, or beliefs, family situation, or the membership of its members in an ethnic group, race, or nation, their national origin, sex, sexual orientation, or gender identity, for reasons of gender, illness, or disability, when this promotes or encourages a climate of violence, hostility, hatred, or discrimination against them.

Article 510.2.a of the Criminal Code establishes that the following shall be punished with imprisonment for six months to two years and a fine of six to twelve months: Those who harm the dignity of persons through actions that involve humiliation, contempt, or discredit of any of the groups referred to in the previous section, or of a part thereof, or of any person determined on the basis of their membership in them for racist, anti-Semitic, or other reasons related to ideology, religion, or beliefs, family situation, the membership of their members in an ethnic group, race, or nation, their national origin, their sex, sexual orientation, or gender identity, on grounds of gender, illness, or disability, or who produce, possess for the purpose of distribution, facilitate access to third parties, distribute, disseminate, or sell writings or any other type of material or media that, due to their content, are likely to harm the dignity of persons by representing a serious humiliation, contempt, or discredit of any of the aforementioned groups, a part of them, or any person determined on the basis of their membership in them.

The Criminal Code also establishes that, according to Article 510.2.b, those who glorify or justify, by any means of public expression or dissemination, crimes committed against a group, a part of it, or against a specific person because of their membership in that group for racist, anti-Semitic, or other reasons related to ideology, religion, or beliefs, family situation, the membership of its members in an ethnic group, race, or nation, their national origin, sex, sexual orientation or identity, gender, illness, or disability, or those who have participated in their execution. The acts shall be punished with a prison sentence of one to four years and a fine of six to twelve months when they promote or encourage a climate of violence, hostility, hatred, or discrimination against the aforementioned groups.

Between the crime against moral integrity in Article 173 and Article 510.2, the latter is the special rule because of its more specific and comprehensive scope of protection. Article 510.4 establishes that the upper half of the penalty shall be imposed, which may be increased to the higher degree, when the acts, in view of the circumstances, are likely to disturb the public peace or create a serious feeling of insecurity or fear among the members of the group.

With regard to cyber hate, Article 510.3 of the Criminal Code establishes that the upper half of the penalty shall be imposed when the acts have been carried out through social media, the internet, or the use of information technologies, in such a way that they have been made accessible to a large number of people.

From a constitutional perspective, Articles 9, 10, and 14 of the Spanish Constitution provide the basis for protection against discrimination, establishing the principle of equality, the dignity of the person as the foundation of the political order, and the obligation of public authorities to promote conditions for equality to be real and effective. The jurisprudence of the Constitutional Court has recognized that sexual orientation, gender identity, and age are

included in the open clause of Article 14 relating to any other personal or social condition or circumstance.

4.3 Case law: criteria used by the courts and relevant cases

Constitutional case law has extensively developed the content of the right to equality and the prohibition of discrimination. The Constitutional Court has affirmed that equality is a superior value of the legal system and that human dignity constitutes an inviolable minimum that must be protected in all public actions. It has also interpreted Article 14 in accordance with international human rights treaties, recognizing protection against discrimination based on sexual orientation, gender identity, and age.

In criminal matters, the Supreme Court has repeatedly applied the aggravating circumstance of Article 22.4 when a discriminatory motive is proven. In various rulings, it has confirmed its application in assaults motivated by sexual orientation, ideology, or actual or perceived membership of certain groups. It has also pointed out that mere reference to a protected characteristic is not sufficient if it does not constitute the determining motive for the crime. In relation to Article 510, case law has required that the provocation be direct, specific, and sufficiently serious, differentiating between the dissemination of ideas and the actual incitement to discrimination, hatred, or violence. In some cases, convictions have been handed down when the conduct involved clear and public incitement, even agreeing to measures such as the closure of websites used to disseminate hateful content. In other cases, freedom of expression has been deemed to prevail when the typical requirements of direct and specific incitement are not met.

The courts have also applied Article 173.1 in cases of racist or humiliating attacks, considering that gratuitous acts of harassment directed against persons belonging to vulnerable groups seriously damage their dignity.

To assess the existence of a hate crime, the courts use so-called polarization indicators, which allow discriminatory motivation to be inferred from objective facts. These indicators include the victim's perception, their actual or perceived membership of a vulnerable group, the expressions used during the commission of the act, the symbols used by the perpetrator, their links to extremist groups, any history of similar behavior, the place and date of the events, and the apparent gratuitousness of the assault.

Circumstantial evidence has been admitted by both the Constitutional Court and the Supreme Court, provided that the evidence is fully substantiated, plural or particularly significant, the logical reasoning leading to the inference is made explicit, and it complies with the rules of experience.

With regard to the participation of social organizations and entities, the actions of non-governmental organizations and associations specializing in the defense of human rights are noteworthy, as is the intervention of the Hate Crimes and Discrimination Service of the Public Prosecutor's Office, which has promoted investigations and precautionary measures in cases of dissemination of hate content.

In conclusion, the Spanish legal framework articulates the response to hate crimes through a combination of a general aggravating circumstance, specific criminal offenses, and the criminalization of hate speech, complemented by a solid jurisprudential construction that requires rigorous proof of discriminatory motive through circumstantial evidence.

4.3.1. Relevant case law on discrimination and hate crimes.

1. Discrimination on the basis of sex and sexual orientation **Supreme Court case law**

The case law of the Supreme Court has consolidated a broad interpretation of Article 14 of the Spanish Constitution on equality and non-discrimination.

In the area of discrimination on the basis of sex, the following are noteworthy:

Judgment of the First Chamber of the Supreme Court 283/2011, of April 20, concerning Article 14 of the Spanish Constitution and discrimination on the basis of sex. It analyzes the rules of evidence when a violation of the right not to be discriminated against is alleged, the Directives on equal treatment, and their transposition into the Organic Law on Effective Equality between Women and Men. The ruling concludes that there was no unlawful use of the first name.

Judgment 66/2014, of May 5, which addresses the plaintiff's right not to suffer discrimination on the basis of sex in accordance with Article 14 of the Spanish Constitution.

Case law of the Constitutional Court

The Constitutional Court has repeatedly pointed out that the prohibitions on discrimination set out in Article 14 of the Spanish Constitution "must be understood to include discrimination on the grounds of sexual orientation, since, although it is true that this ground is not expressly mentioned in Article 14 of the Spanish Constitution as one of the specific cases in which discriminatory treatment is prohibited, it is undoubtedly a circumstance included in the clause 'any other personal or social condition or circumstance' to which the prohibition of discrimination must refer (see, among others, Constitutional Court Ruling 41/2006 of February 13, Legal Grounds 3)." (SSTC 41/2013, of February 14, FJ 6; and 92/2014, of July 4, FJ 4)

Likewise:

- **STC 176/2008, of December 22**: declares that transsexuality constitutes a circumstance included in Article 14 of the Spanish Constitution. The ruling bases this conclusion on the historical situation of disadvantage and marginalization of the transsexual community and on the interpretation in accordance with Article 10.2 of the Spanish Constitution, with reference to the case law of the European Court of Human Rights.
- **STC 198/2012, of November 28**: affirms that marriage is a constitutional right of all and that, based on an evolutionary interpretation of the Constitution, it cannot be concluded that heterosexual marriage is the only constitutionally legitimate form of marriage.

Taken together, this doctrine consolidates an expansive and protective interpretation of the principle of equality.

2. Discrimination on the basis of age

The Constitutional Court has recognized age as a factor susceptible to constitutionally prohibited discrimination.

In rulings such as SSTC 190/2005, 247/2005, 280/2006, 341/2006, 63/2011, 79/2011, 117/2011, 161/2011, and 66/2015, the Court considers discrimination to exist when the differential treatment lacks objective and reasonable justification or is disproportionate.

3. Freedom of expression and hate speech

STC 235/2007, of November 7 (Librería Europa case) establishes that freedom of expression includes freedom of criticism, even when it is annoying or unpleasant, as it is inherent to pluralism, tolerance, and the spirit of openness characteristic of a democratic society. In this vein, previous rulings such as STC 176/1995, STC 214/1991 (Violeta Friedman case), as well as other rulings by the Constitutional Court (204/1997; 11/2000; 49/2001; 160/2003; 174/2006; 110/2000).

It also mentions Recommendation (97) 20 of the Committee of Ministers of the Council of Europe, which urges states to take action against all forms of expression that propagate, incite, or promote racial hatred, xenophobia, anti-Semitism, or other forms of hatred based on intolerance.

In addition, it reflects the evolution of the case law of the European Court of Human Rights, particularly in relation to hate speech and the progressive delimitation of the protection granted to certain expressions when they affect vulnerable groups.

Constitutional case law on equality and dignity

The Constitutional Court has developed a systematic doctrine on the right to equality:

- **STC 19/1982:** links Article 14 of the Spanish Constitution with Article 1.1 and Article 9.2 of the Spanish Constitution, as well as with the guiding principles of Chapter III of Title I.
- **STC 8/1983:** establishes equality as a superior value of the legal system.
- **STC 53/1985:** places Article 10 of the Spanish Constitution as the foundation of all other rights.
- **STC 39/1986:** highlights the commitment of public authorities to substantive equality.
- **SSTC 120/1990 and 57/1994:** classify human dignity as a "minimum inviolable right."
- **STC 64/1991:** states that the international texts of Article 10.2 of the Spanish Constitution are a source of interpretation of fundamental rights.
- **STC 216/1991:** admits temporary favorable action for the benefit of historically marginalized groups.
- **STC 200/2001:** specifies that the principle of equality requires equal treatment in equal situations and allows differences only when there is objective and reasonable justification and they are not disproportionate.

4.2 Criminal Case Law and Hate Crimes

1. Application of the aggravating circumstance of Article 22.4 of the Criminal Code

In order to apply the aggravating circumstance, the perpetrator must have acted out of discriminatory motives in relation to certain characteristics of the victims. If the motive is unrelated to the victim's condition, or if the discriminatory purpose does not motivate the commission of the crime but rather the choice of victim, the aggravating circumstance will not apply.

The legislator, *prima facie*, does not establish any explicit limitation on the crimes in which the aggravating circumstance could be applied. Therefore, it may be applicable to all types of crimes.

General criteria established by the Supreme Court

The Supreme Court has confirmed its application in multiple cases:

- **STS July 17, 2002:** assault in Sitges on a person allegedly homosexual. The presumption of the victim's condition is sufficient.
- **STS 1160/2006, November 9:** includes attack on a homeless person within the open clause on discrimination.
- **STS 145/2006, November 23:** murder motivated by ideological reasons.
- **STS April 22, 2010:** ideologically motivated assault linked to neo-Nazi ideology.
- **STS May 4, 2015 (Stroika case):** joint action by a group with National Socialist ideology.
- **Supreme Court ruling of January 11, 2017:** upholds the aggravating circumstance of Article 22.4 of the Criminal Code.
- **Supreme Court ruling of April 16, 2015:** conviction of individuals linked to extremist groups related to soccer.
-

Case law of Provincial Courts

The Provincial Courts have applied the aggravating circumstance in cases of:

- Ideological discrimination (SAP Barcelona, July 27, 2009).
- Xenophobia and racism (SAP Barcelona, January 15, 2010; SAP Santa Cruz de Tenerife, March 7, 2014).
- Sexual orientation (SAP Barcelona, March 29, 2012).

However, they have rejected its application when the discriminatory motive is not decisive (SAP Málaga, March 4, 2014).

Application of Article 173.1 of the Criminal Code (crime against moral integrity)

Article 173.1 of the Criminal Code has been applied in cases of racist insults and degrading treatment that undermine moral integrity.

The ruling of Criminal Court No. 16 of Barcelona (March 16, 2009), confirmed by SAP Barcelona (February 8, 2010), convicted a person of assault with serious racist insults against an Ecuadorian minor.

The Provincial Court of Appeal No. 1 of Barcelona (March 16, 2015) convicted a defendant of the crime of assault with the aggravating circumstance of racism when the motive was the rejection of the victim's Dominican origin.

These rulings refer to the evolution of the case law of the European Court of Human Rights on hate speech.

Application of Article 510 of the Criminal Code (incitement to hatred)

Article 510 of the Criminal Code punishes incitement to discrimination, hatred, or violence against groups or associations on grounds related to certain personal or social circumstances. The interpretation of this provision has given rise to significant case law, particularly with regard to the requirements of incitement, the requirement of direct incitement, the publicity of the conduct, and its delimitation in relation to freedom of expression.

The case law analyzed shows a common thread: not every ideological statement or offensive expression constitutes a criminal offense, but only those behaviors that strictly meet the requirements of direct, public incitement with a minimum degree of specificity. The following Supreme Court rulings are particularly relevant:

Supreme Court ruling of August 29, 1998

In this ruling, the Supreme Court upholds the sentence imposed by the Provincial Court of Murcia for a crime against the exercise of fundamental rights.

The convicted person refused to sell a vehicle to the victim, stating expressions such as: "I don't sell to dark-skinned people like you, or to gypsies or Moors." The ruling confirms the conviction for denial of a service to which the victim was entitled, with the imposition of special disqualification from professional practice.

This case highlights that Article 510 of the Criminal Code can be applied when discriminatory conduct takes the form of the effective exclusion of a right or service on racist grounds.

Supreme Court ruling of April 12, 2011 (Kalki Bookstore case)

This ruling is particularly relevant in defining the criminal offense.

The defendant, owner of the "Kalki Bookstore," distributed and sold publications that:

- Excused the crimes of the Nazi regime.
- Glorified the Third Reich.
- Incited the elimination of the Jewish people.
- Promoted discrimination and hatred against Jews, blacks, homosexuals, and other groups.
-

The Provincial Court of Barcelona had convicted him of the crime of spreading genocidal ideas and other crimes related to fundamental rights. However, the Supreme Court upheld the appeal and acquitted him in relation to Article 510 of the Criminal Code.

The central basis for the acquittal lies in the interpretation of the concept of "provocation."

The Court states that:

- The use of the term "provoke" refers to direct incitement.
- There must be a direct incitement to commit minimally specific acts.
- The mere dissemination of ideology or the expression of extremist ideas is not sufficient if such direct incitement is not proven.

The Court affirms that the factual account did not contain any acts that could be considered direct incitement to commit specific acts of discrimination, hatred, or violence. Therefore, an acquittal is handed down.

This ruling sets a clear line: provocation must be direct, specific, and have a real capacity to incite discriminatory or violent behavior.

The Provincial Courts have developed in detail the typical elements of Article 510 of the Criminal Code, ranging from convictions to acquittals depending on the degree of incitement and specificity of the conduct.

A) Convictions

SAP Barcelona, Section 10, September 28, 2009

Conviction for the crime of spreading genocidal ideas and for a crime committed in the exercise of fundamental rights.

SAP Santa Cruz de Tenerife, March 7, 2014

The defendant wrote a poem with xenophobic content about the arrival of people of African origin in the Canary Islands and sent it to a newspaper for publication.

The ruling highlights that:

- Provocation must meet the requirements of Article 18 of the Criminal Code, except for the requirement that the provoked act be a crime.
- Direct incitement is necessary.
- There must be a minimum determination of the crime being provoked.
- The elements of publicity are necessary.

In this case, it was considered that these requirements were met, and the conviction was upheld.

SAP Barcelona, March 20, 2014

Confirms the conviction for the crime under Article 510 of the Criminal Code in relation to the Frente Joven Obrero association.

The group's website featured:

- Photographs of Nazi ideology.
- Messages against immigrants and multiculturalism.
- Slogans such as "White Europe," "Stop immigration," and "The streets belong to us."
- Videos with songs and images inciting hatred and violence against immigrants.

The ruling considers that such content exceeds mere ideological expression and constitutes incitement to hatred and violence.

Madrid Provincial Court, Judgment 09/17/2020

Conviction for a crime against fundamental rights under Article 510.2.a of the Criminal Code. The defendants engaged in humiliating behavior toward women because of their ethnic origin and social status, throwing coins on the ground so that they would bend down to pick them up, urging them to do push-ups in exchange for money, and burning a banknote in front of them. The behavior was objectively offensive and humiliating, motivated by contempt for their ethnic origin.

Criminal Court No. 3 of Donostia, June 28, 2018

Convicted of a hate crime for comments posted on social media containing xenophobic expressions directed at Roma and Muslim people, including expressions of expulsion and imprisonment.

B) Acquittals

SAP Barcelona, Section 5, June 29, 2012

Reverses conviction of former councilor who had distributed offensive leaflets against citizens of Maghreb origin.

The ruling analyzes the interpretative problems of Article 510 of the Criminal Code and establishes that:

- No harmful result is required.
- The provocation must be direct, specific, threatening, definitive, and serious.
- Generic or indirect provocation does not fall within the scope of the offense.
- General statements must be allowed in a democracy.
- Discrimination must be understood in a strictly legal sense, linked to Article 14 of the Spanish Constitution.

In this specific case, the requirements of direct and specific incitement were not met.

SAP Barcelona, Section 3, February 1, 2013

The defendant is acquitted of the crime under Article 510 of the Criminal Code on the grounds that the conduct consisted of the dissemination of doctrines, but not of direct incitement to discrimination, hatred, or violence.

The ruling distinguishes between:

- Indirect or mediate incitement.
- Direct provocation required by Article 510 of the Criminal Code.

Only the latter is typical.

SAP Barcelona, Section 2, July 22, 2014

Acquits the defendant of the crime of disseminating defamatory information, as the subjective element of intent to offend (*animus iniuriandi*) is not present in the terms required.

Federation Kamira has actively participated as a private prosecutor in several criminal proceedings for hate crimes, **obtaining significant convictions** under Article 510 of the Spanish Penal Code.

1. PSV Fans Case – SAP Madrid 344/2020, September 17

Facts

On March 15, 2016, during the football match held in Madrid between Atlético de Madrid S.A.D. and PSV Eindhoven, several fans of the Dutch team spent the morning in the Plaza Mayor consuming alcoholic beverages.

In this context, four Roma women of Romanian origin who were begging in the area were subjected to humiliating and degrading treatment by the defendants.

Specifically, the established facts show that the defendants:

- Throw coins and other objects on the ground to force them to bend down and pick them up.
- They urged them to perform push-ups or other humiliating gestures in exchange for money.
- They chanted and hurled degrading insults.

These actions were directed against the victims because of their ethnicity and their vulnerable situation, constituting objectively offensive treatment and an affront to their dignity.

The facts were proven through testimonies, recordings, and publicly disseminated video footage.

Judicial Ruling

The Provincial Court of Madrid, in its Judgment 344/2020, of September 17, convicted the defendants as perpetrators of a crime against fundamental rights and public freedoms under Article 510.2.a) of the Penal Code.

The sentences imposed were:

- Three months in prison.
- A fine of 270 euros.
- Special disqualification from any educational profession or occupation, in the teaching, sports, and leisure sectors, for three years and three months.
- Payment of court costs.

Furthermore, in terms of civil liability, each victim was compensated with €1,500 (€4,500 in total).

2. Ángel Lopetegui Case – Criminal Court No. 3 of San Sebastián

Criminal Court No. 3 of San Sebastián convicted A.L. for publishing seriously offensive and hate-inciting comments against the Roma population on the social network Facebook.

Among the expressions used were statements such as:

“What a shame Hitler didn’t wipe them all out” or “There isn’t a single good Roma person,” accompanied by stereotypical and dehumanizing terms.

The court considered that such statements clearly exceeded the limits of freedom of expression and constituted a hate crime under Article 510 of the Spanish Penal Code.

The sentence imposed:

- One year in prison.
- Special disqualification from the right to passive suffrage for the duration of the sentence.
- A six-month fine with a daily rate of 7 euros.
- Special disqualification from any educational profession or occupation, in the teaching, sports, and leisure sectors, for six years.
- Payment of court costs.

3. Cortegana Case – Public Disorder with Racist Aggravating Circumstances

Facts:

On January 1, 2005, the body of a local resident was found in the town of Cortegana (Huelva). The suspicion that several people of Roma ethnicity might be involved generated a strong social reaction.

On January 16, a demonstration was held to demand justice and greater security. However, the protest devolved into a hostile mobilization against the Roma community.

During the demonstration, expressions such as “Gypsies out” and “their houses should be burned down” were shouted, accompanied by stone-throwing and acts of vandalism directed against homes, vehicles, and property belonging to Roma people.

The defendants actively participated in these acts, exceeding the limits of the right to demonstrate and engaging in criminally relevant conduct.

Legal Classification and Sentences:

The convicted individuals were found guilty of:

- Public disorder (Art. 557 of the Spanish Penal Code).
- In ideal concurrence (Art. 77 of the Spanish Penal Code) with criminal damage (Art. 263 of the Spanish Penal Code).
- With the aggravating circumstance of Article 22.4 of the Spanish Penal Code due to racist or discriminatory motives.

One of the defendants was granted the mitigating circumstance of intoxication (Art. 21.1 in conjunction with Art. 20.2 of the Spanish Penal Code).

The sentences imposed were:

For public disorder:

- One year and nine months of imprisonment.
- Deprivation of the right to stand for election for the duration of the sentence.

For criminal damage:

- A fine of eighteen months at a daily rate of four euros, with subsidiary personal liability in case of non-payment.

Regarding civil liability, the convicted parties must jointly and severally compensate for the damages caused to homes, vehicles, and belongings, in the amounts determined during the execution of the sentence, including, where applicable, the Regional Government of Andalusia as the owner of the affected properties.

4. Case “Blog: Death to the Gypsies”

Facts:

On September 9, 2016, José Francisco Alcocer Mesa, an adult diagnosed with schizophrenia and with partial diminished capacity to act, in a highly disturbed state, he published several messages on a blog directed at people of Roma ethnicity with the intent to humiliate them, incite hatred, and promote violence.

Specifically, the established facts show that the accused:

- Described Roma people as “scum of society” and “donkeys,” making derogatory comments about their social and economic situation.
- Explicitly threatened to harm members of the Roma community, including references to weapons and violence against children (“churumebeles”).
- Promoted discrimination, contempt, and violence against people of this ethnicity through expressions publicly disseminated online.

These actions constitute an attack on the dignity and fundamental rights of the victims based on their ethnicity. The facts were corroborated by the content published on the blog itself.

Judicial Ruling:

The Criminal Court No. 2 of Guadalajara, in its Judgment 361/2021, dated December 2, convicted the defendant as the perpetrator of a hate crime under Article 510.1.a and 3 of the Criminal Code, with the mitigating circumstance of diminished mental capacity (Article 21.1 of the Criminal Code).

The sentences imposed were:

- 1 year and 6 months of imprisonment (suspended for 2 years, conditional upon not committing any further offenses during that period).
- Special disqualification from the right to passive suffrage for the duration of the sentence.
- A fine of 6 months at a daily rate of 5 euros, payable in 20 consecutive monthly installments.
- The defendant was ordered to pay court costs.

4.3.2. Criteria used by the courts to assess a hate crime.

As stated above, for an act to be considered a hate crime, it is essential to prove the discriminatory motivation of the perpetrator. Since prejudicial motivation is an element that

belongs to the intimate sphere of the person, which is very difficult to access, it has become necessary to find evidence that can be used to prove that the person who committed the criminal act acted out of prejudice. These clues are called polarization indicators:

- Perception of the victim: Following the recommendations of the European Commission against Racism and Intolerance (ECRI), the mere perception of the victim that they have suffered a crime for discriminatory reasons should lead the authorities to undertake an investigation to confirm or rule out the discriminatory nature of the crime. This perception does not automatically mean that the acts are considered a hate crime, but it does compel the authorities to carry out the necessary investigative procedures to ascertain the possible discriminatory motive behind the punishable act.
- Victim's membership of a minority group: Victim of a crime on ethnic, racial, religious, sexual orientation or identity, disability grounds, etc. It may also happen that a person who does not belong to a vulnerable group is the victim of a hate crime, either by association (the victim's relationship with that group for family, professional or other reasons) or by mistake (the victim is perceived as a member of a vulnerable group without actually being one).
- Expressions or comments made while committing the act In this case, it is recommended that they be recorded verbatim in the statements of the victim or witnesses and highlighted, if possible, using capital letters and bold type.
- Tattoos or clothing: The clothing or tattoos of the perpetrator will often be very graphic in terms of their hate-related symbolism, helping to establish the perpetrator's profile and the motivation for the crime. In this regard, the police should provide photographic reports included in the police reports that reflect all this information.
- Ultra-nationalist propaganda, banners, flags, placards, etc.: Propaganda, banners, flags, placards, and other ultra-nationalist objects carried by the perpetrator or found in their home are also indicators that the reported events may constitute a hate crime. All these items must be filmed or photographed for inclusion in the police report. The analysis of these items will require investigators to have knowledge of what is known as hate symbolism.
- Relationship of the suspect with ultra soccer groups: In this case, it will be necessary to cross-reference the data available to soccer stadium security coordinators in application of the legislation on violence in sport.
- Police record of the suspect: Another indicator is whether the suspect has been involved in similar incidents or has previously been identified as attending neo-Nazi RAC/OI music concerts, conferences, meetings, or demonstrations characterized by their hostility towards minority groups. In this case, it is recommended to request this information from police intelligence units.
- Location where the crime is committed (proximity to a place of worship, LGBT bar, etc.)

- Relationship of the suspect with groups or associations characterized by their hatred, animosity, or hostility towards immigrant, Muslim, Jewish, or homosexual groups
- Date of commission marked for the affected group (LGBT Pride Day) or for the perpetrator (Hitler's birthday)
- The apparent gratuitousness of the reported acts: The apparent gratuitousness of the reported acts, particularly if they are violent and the victim belongs to a minority group, is the strongest indicator that we are dealing with a hate crime. When an assault or intentional damage has no plausible explanation and the victim belongs to a minority group because of their origin, ethnicity, religion, sexual orientation, skin color, or physical features, it is very likely that we are dealing with a hate crime and that the real motivation for the crime is the victim's membership or relationship with that group.

However, the presence of these indicators alone does not prove the existence of a hate crime. Motives of hate can only be proven after a rigorous and exhaustive investigation, the results of which must be ratified by a judicial body.

If the indicators of polarization are present, the incident must be recorded as a hate crime and a more in-depth investigation into the motive for the crime must be undertaken. Supreme Court ruling 314/2015 of May 4 (Stroika case) on proving the perpetrator's motive for committing the crime ruled that: ...proving the perpetrator's motive for committing the crime... involves investigating, in terms of the burden of proof, a motivational element that can only be inferred from circumstantial evidence.

The value of circumstantial evidence as proof has been accepted by both the Constitutional Court and the Supreme Court. The Constitutional Court has held this position since its first rulings on the matter (SSTC 174/1985, 175/1985, 24/1997, 157/1998, 189/1998, 68/1998, 220/1998, 44/2000, and 117/2000). The Constitutional Court (SSTC 111/2008, 109/2009, 126/2011, 128/2011, 175/2012, and 15/2014) has considered the following to be essential requirements:

- a) The underlying fact or facts (or evidence) must be fully proven:
 - Multiple facts or evidence: the underlying facts or evidence must be multiple, as their peripheral nature renders them unsuitable for establishing judicial conviction on their own.
 - Exceptionally, a single piece of evidence is admissible when it has singular probative power or a particularly relevant meaning; for example: an assault in which a person belonging to a minority group is selected, apparently
- b) The facts constituting the crime must be deduced precisely from these fully proven basic facts.
- c) In order to verify the reasonableness of the inference, it is necessary, first of all, for the judicial body to disclose the proven facts or evidence and, above all, to explain the reasoning or logical connection between the basic facts and the consequential facts.
- d) Finally, this reasoning must be based on the rules of human judgment or the rules of common experience.

5. Institutional Framework and Responsible Authorities

5.1. Public Authorities and Security Forces

At the national level, institutional coordination in response to hate crimes is primarily the responsibility of the Ministry of the Interior through various specialized bodies.

The National Office for Combating Hate Crimes is responsible for overseeing and promoting the application of the Protocol for State Security Forces and Corps in response to hate crimes, acting as a permanent liaison with civil society organizations representing victims, the executive branch, other institutions involved, and the State Security Forces and Corps, and coordinating the training of the latter in the field of hate crimes, thereby consolidating the role of the Ministry of the Interior in the fight against this type of crime.

The Ministry of the Interior, through the Secretariat of State for Security, has developed the Protocol of Action for the Security Forces and Corps for Hate Crimes and Conduct that Violates Legal Regulations on Discrimination, with the participation of the Directorate General of the National Police and the Directorate General of the Civil Guard. The purpose of this instrument is to provide police forces with uniform criteria for identifying and recording incidents related to hate.

In application of Instruction 16/2014 of the Secretary of State for Security, the figure of the Social Interlocutor of the National Police was created, both at the central and peripheral levels, as a permanent point of contact with associations and non-governmental organizations, responsible for coordinating actions related to hate crimes and providing technical and police support.

The Crime Statistics System, developed by the Secretary of State for Security in collaboration with the National Police, the Civil Guard, regional police forces such as the Ertzaintza, the Mossos d'Esquadra, and the Foral Police of Navarre, as well as with the local police, aims to improve the recording and analysis of hate incidents in order to provide an updated map that can serve as a basis for prevention and eradication policies.

Likewise, the Master Plan for Coexistence and Improvement of Security in Educational Centers and their Surroundings, promoted by the Secretary of State for Security in collaboration with other ministerial departments, strengthens cooperation between the police and educational authorities in order to prevent and combat hate crime and improve school coexistence.

5.2. Public Prosecutor's Office and specialized bodies

Within the Public Prosecutor's Office, the Network of Delegated Prosecutors for the Criminal Protection of Equality and Against Discrimination is particularly noteworthy. The existence of a specialized prosecutor's office at the provincial level makes it possible to pay greater attention to incidents related to hate crimes, ensuring that they do not go unnoticed during the proceedings and allowing the corresponding aggravating circumstances provided for in

the Criminal Code to be applied. The work of the specialized prosecutor's offices has the immediate effect of ensuring that hate crimes are properly recorded in the annual report of the Attorney General's Office.

Coordinated action between specialized prosecutors' offices, law enforcement agencies, and other public bodies helps to ensure a consistent and specialized criminal response to discriminatory behavior.

5.3. Public bodies, observatories, and specific programs

The Spanish Observatory on Racism and Xenophobia (OBERAXE) acts as a platform for knowledge and analysis on racism, racial discrimination, xenophobia, and intolerance. It collects information on projects, studies, and reports promoted by different ministerial departments and collaborates with public administrations and civil society at the national, European, and international levels.

Within the framework of OBERAXE, programs such as Training for the Identification and Recording of Racist Incidents and the FRIDA project are being developed, aimed at preventing and detecting racism, xenophobia, and other forms of intolerance in the educational sphere, with the goal of transforming schools into inclusive spaces.

The State Observatory on Disability is a technical instrument of the General State Administration for the collection and dissemination of information on disability, promoting equal opportunities, non-discrimination, and universal accessibility.

The State Commission against Violence, Racism, Xenophobia, and Intolerance in Sport, created by Royal Decree 748/2008, carries out preventive and punitive functions in the field of sport, proposing disciplinary proceedings and declaring high-risk matches, in compliance with international commitments on the prevention of violence in sport.

5.4. Civil society, observatories, and non-governmental organizations

Civil society plays an important role in detecting, assisting, and raising awareness of hate crimes.

The Observatory against Islamophobia in the Media, promoted by the European Institute of the Mediterranean and the Al Fanar Foundation, with the participation of other academic and cultural entities, identifies examples of Islamophobia in journalistic reporting in order to promote accurate and balanced journalism.

The RAXEN Report, produced by the Movement Against Intolerance, monitors and records incidents and crimes of racial, xenophobic, anti-Semitic, and Islamophobic hatred. The State Federation of SOS Racism keeps a record of incidents related to hate crimes and discrimination through its information and reporting offices, providing a map of incidents in both the public and private spheres.

The RAIS Foundation promotes the HATENTO Observatory on hate crimes against homeless people, with the aim of increasing awareness of aporophobia, training professionals, and

sensitizing society. Likewise, the Kamira Federation has developed the SOS KAMIRA application to channel complaints of hate crimes and discrimination, promoting dignified and equal treatment.

The Anti-Gypsyism Pact, promoted by the Federation of Gypsy Women's Associations FAKALI with institutional support, aims to eradicate discriminatory attitudes against the Gypsy people, especially against Gypsy women who suffer intersectional discrimination.

Finally, the NGO Platform for Social Action promotes the project "Together against hate speech and hate crime," in collaboration with various public administrations and social entities, promoting innovative initiatives for cooperation between the administration, civil society, and specialized agencies to strengthen the response to hate speech and hate crimes.

6. Current Situation in the country

6.1. Statistical data, recent trends, and relevant cases

According to the latest report from the Ministry of the Interior, hate crimes motivated by racism and xenophobia constitute the area with the highest number of incidents recorded in Spain, with 804 cases, although they have decreased by 6% compared to the previous year. These are followed by hate crimes based on sexual orientation and gender identity, with 528 incidents, representing an increase of 1.15% compared to 2023. In third place are crimes based on sex or gender discrimination, with 181 incidents, representing a decrease of 12.14%.

In terms of year-on-year variation, the largest increases were observed in anti-Semitism, with an increase of 60.9%, and aporophobia, with a variation of 33.3%. In contrast, hate crimes related to ideology and anti-Gypsyism decreased by 58.2% and 51.3%, respectively. As a new feature, the report includes hate crimes motivated by Islamophobia for the first time, with 15 incidents recorded, in line with the recommendations of the European Union Agency for Fundamental Rights.

In terms of the type of crime, injuries stand out, with 385 cases, and threats, with 358, followed by the promotion of discrimination, with 217 incidents, degrading treatment, with 107, and insults, with 106. Territorially, Navarre has the highest rate of hate crimes, offenses, and incidents per 100,000 inhabitants, with 14%, followed by the Basque Country, with 10.8%, and the cities of Ceuta and Melilla, with 8.4% and 8.1%, respectively.

In relation to hate speech crimes committed via the Internet, social networks, and the media, the areas of sexual orientation and gender identity and racism and xenophobia show

the highest incidence in 2024, with increases of 22.41% and 47.37%, respectively. Threats, public promotion or incitement to hatred, and degrading treatment are the most frequent behaviors. The Internet accounts for 34% of cases and social media for 31% as the main means used.

Regarding the profile of victims and perpetrators, the report notes that in 2024, the State Security Forces and Corps solved 71.9% of the incidents, 4% more than in 2023, and arrested or investigated 905 people, mostly male (81.9%) and aged between 26 and 40, representing 28.1% of the total.

Those most affected by this type of crime are males (59.9%), while the most affected age group is between 26 and 40 years old (34.7%). Minors account for 12.8% of all victims.

In terms of the distribution of victims by nationality, Spanish nationals occupy first place, accounting for 60.1% of all recorded victims. Among foreign victims (39.89%), those from Morocco account for the highest number (8.8%), ahead of Colombia (5.3%) and Venezuela (2.58%). There has been a slight decrease in domestic victimization and a slight increase in foreign victimization compared to the previous year.

The majority of those arrested/investigated for hate crimes and incidents are Spanish nationals (75.58%); among those of foreign nationality (24.42%), those from Morocco (8.73%), Colombia (2.65%), and Romania (1.99%) account for the highest number of cases.

The report emphasizes that hate crimes do not only target those with certain characteristics; they are, in essence, an attack on the entire citizenry. Intolerance, prejudice, and contempt for others erode the foundations of democratic coexistence. As stated in Article 22.4 of the Criminal Code, discriminatory motivation turns a crime into a threat not only against the specific person, but also against the principle of equality that protects everyone.

6.2. Structural gaps in implementation and enforcement

Despite advances in recording and prosecution, significant structural gaps remain. One of the main ones is the high number of unreported incidents, which prevents us from knowing the real extent of the phenomenon and makes it difficult to design appropriate public policies. Underreporting is related to fear of reprisals, the normalization of violence and discrimination in certain groups, and the perception that the incidents constitute minor offenses without criminal relevance.

Distrust of institutions is another significant gap. Many victims believe that their reports will not be adequately addressed or that they will be useless. In some cases, there is fear of an adverse reaction from the police or of not being believed. Foreign nationals in an irregular

administrative situation may fear immigration consequences if they report the crime. Similarly, certain groups, such as LGBTI people, may be reluctant to report for fear of revealing their sexual orientation or gender identity, especially when they lack family support or have historically been criminalized or pathologized.

Another structural gap lies in the lack of specialized training for some professionals responsible for ensuring security and administering justice. Insufficient training can lead to the hate component of the crime not being detected, the discriminatory motivation not being properly investigated, or the acts being misclassified as minor offenses, without assessing all the legal rights affected. This incorrect classification affects not only the individual victim, but also the group to which they belong, by eroding trust in institutions.

Deficiencies have also been identified in the provision of assistance to victims, which must be done in clear and understandable language. If victims do not understand their procedural rights, they are unlikely to exercise them. There have also been cases of improper referrals to administrative offices, such as the Municipal Consumer Office, instead of processing the corresponding criminal complaint, due to a lack of technical knowledge about hate crimes.

6.3. Evidentiary difficulties, reporting channels, and procedural guarantees

One of the main difficulties in prosecuting hate crimes is proving prejudicial motivation. Proving discriminatory motive requires specific investigation aimed at identifying evidence that allows such motivation to be inferred, which requires training and specialization. The absence of explicit expressions of hatred can complicate the task of proving the crime, especially when contextual indicators are not adequately collected.

There are formal channels for reporting crimes through the State Security Forces and Corps, as well as specific registration systems and protocols for action. Victims have the right to receive information about their rights, to appear in criminal proceedings, and to obtain specialized assistance. However, ignorance of these rights and the mechanisms available constitutes a significant barrier.

The lack of social awareness and specialized training, together with limited institutional resources in some areas, has a negative impact on the effectiveness of the criminal justice response. Although progress has been made in improving statistical recording since 2011 and in the regular publication of official reports since 2014, the persistence of unreported incidents and difficulties in obtaining evidence highlights the need to strengthen measures for prevention, detection, and comprehensive support for victims.

7. Roma-Specific Context and Impact

7.1. Concept and configuration of anti-Gypsyism

Anti-Gypsyism is defined as a specific form of racism directed against Roma people, characterized by the ideology of racial superiority and dehumanization. It manifests itself through violence, hate speech, exploitation, and discrimination. It also refers to specific racism against Roma, Sinti, Traveller, and other communities that are stigmatized in the collective imagination.

Anti-Gypsyism is often used in a narrow sense to refer to anti-Gypsy attitudes or the expression of negative stereotypes in public spaces or hate speech. However, anti-Gypsyism refers to a broader spectrum of discriminatory expressions and practices, including subtle and invisible forms. Anti-Gypsyism is not only what is said, but also what is done and what is not done, such as impunity for hate crimes against Roma individuals or communities.

The historical construction of the Roma people as "the different" par excellence in Europe has shaped a structural pattern of exclusion. In Spain, until 1978, when the Constitution established equal treatment, not only were crimes or offenses committed by Roma people punished, but the very fact of being a Roma person was persecuted, laying the foundations for the structural anti-Gypsyism that still persists today.

In the National Strategy for Equality, Inclusion, and Participation of the Roma People 2021-2030, the government states that: "Currently, significant inequalities persist in the Roma population compared to the general population, and a significant percentage of this population continues to be victims of discrimination, intolerance, and social exclusion." The stated objective is to eradicate structural anti-Gypsyism and the barriers that hinder equal opportunities and full participation in public life.

7.2. Specific patterns of discrimination and structural inequality

Anti-Gypsyism in Spain manifests itself both in specific incidents of discrimination and in deep structural inequalities that affect access to employment, education, housing, and social services. The Roma population in Spain is estimated at between 1 and 1.3 million people, which gives this issue particular relevance in the national context. This demographic weight and the importance of the Roma contribution to Spanish culture contrasts with widespread ignorance about Roma history and culture, despite the fact that the latest state education reform (the LOMLOE) included in the curriculum the recognition and dissemination of the history of the Roma people to promote knowledge and reduce stereotypes. It is essential to ensure that this content is implemented in educational programs in schools at all levels and to ensure that it translates into a real change in the social perception of the Roma people.

Significant gaps remain, evidencing structural discrimination despite the progress made in recent years. To highlight a few facts, the unemployment rate is three times higher than that of the general population; 86% of Roma people live in poverty; the child poverty rate stands at 89%; the school failure rate is 62.8% (compared to 4% for the general population); and

77% of the population living in shanty towns or substandard housing is Roma. These figures demonstrate the existence of structural discrimination that should be urgently addressed.

According to the latest Special Eurobarometer on discrimination in the European Union, discrimination against Roma people is perceived as the most widespread in both Spain and the European Union as a whole compared to other minorities and discriminated groups (this is the perception of 70% of the population in Spain and 60% of the population in the EU, respectively). In statistical terms, in Spain, 30.3% of Roma people say they have suffered some form of discrimination in the last 12 months, according to the latest study Perception of discrimination based on racial or ethnic origin by its potential victims. It is therefore essential to strengthen reporting and protection mechanisms so that these situations do not go unpunished and victims are guaranteed redress.

7.3. Prejudices and stereotypes as the basis of anti-Gypsyism

Anti-Gypsyism is based on deeply rooted stereotypes and prejudices that portray Roma people as uninterested in work, linked to crime, or unwilling to integrate. These prejudices operate as mechanisms of moral justification for exclusion and shift the responsibility for marginalization onto the victims themselves, obscuring the historical and structural processes of discrimination.

In relation to employment, data show that the activity rate of the Roma population is similar to that of the majority population in certain age groups, although the unemployment rate is higher, which points to structural barriers rather than a lack of willingness to work. Likewise, early entry into the labor market reflects prolonged career paths conditioned by adverse socioeconomic contexts.

The prejudice linking Roma people to crime is one of the most persistent stigmas. Historical criminalization, overrepresentation in arrests in certain contexts, and the use of racial profiling have contributed to reinforcing this perception, even though statistics do not show a higher rate of criminal offenses compared to the non-Roma population.

Another recurring stereotype is that Roma people do not integrate due to a lack of civic-mindedness or willingness. This narrative overlooks the fact that it is processes of exclusion and discrimination that hinder equal access to education, housing, employment, and social participation. Integration depends on real opportunities and the public policies implemented, not on ethnicity.

According to the Ministry of Social Rights and Agenda 2030, it is processes of social exclusion and discrimination that make it difficult for the Roma population to access and use social protection systems—education, housing, employment, health, and social services—and to participate in public life on an equal footing. Integration does not depend on ethnicity but on the opportunities and social policies adopted by the state to achieve it. Roma people live in many different environments, speak different languages and different dialects of Romani, are found on all five continents, and have adopted many of the customs of the majority population in the countries where they live. They have numerous occupations, are members

of different religions, and their financial and educational situation also depends on each person, each group, and the general situation of the country in which they live, as is the case with any other citizen.

7.4. Barriers to access to justice and institutional response

Situations of discrimination and hatred against the Roma population do not always result in formal complaints, which contributes to the statistical underrepresentation of the phenomenon. Strengthening complaint and protection mechanisms is essential to prevent impunity and ensure redress for victims.

The persistence of structural anti-Gypsyism, the social normalization of certain stereotypes, and the lack of historical recognition create additional barriers to access to justice. These barriers translate into institutional mistrust, a lower propensity to report incidents, and difficulties in having incidents properly recognized as manifestations of hatred or discrimination.

7.5. Strategies to combat anti-Gypsyism

The eradication of anti-Gypsyism requires a comprehensive approach that combines education, inclusive public policies, active participation by the Roma community, and effective enforcement of anti-discrimination legislation. It is essential to promote awareness and respect for Roma culture, guarantee equal opportunities in key areas such as education, employment, and health, and ensure responsible and diverse representation in the media.

Education plays a central role in transforming social attitudes. The systematic incorporation of content related to the history and contributions of the Roma people into school curricula, together with the training of teachers and social agents in diversity and non-discrimination, is a key tool for combating prejudice and promoting coexistence based on respect and inclusion.

8. Preliminary Recommendations

To achieve an effective response to hate crimes, the FRA (European Union Agency for Fundamental Rights) has put forward recommendations to encourage reporting, which we will develop according to the identified needs:

- Development of victim support offices. One of the main problems we encounter in Spain is underreporting. Therefore, it would be beneficial to create a team of intercultural mediators, with special knowledge of the Roma community, who would act according to specific protocols for victims of these types of crimes and be coordinated with key agents, such as the public prosecutor's office. This would help alleviate the institutional distrust that victims have.

- Dissemination of information on victims' rights and existing resources to assist them. It is essential that victims know basic rights, such as the right to free legal aid or the right to be

accompanied by a person of their choice when filing a report. This is also one of the reasons contributing to the underreporting of these crimes. Therefore, campaigns are being carried out in neighborhoods with a high concentration of Roma people, in collaboration with specialized organizations like Kamira, to make these rights easily and clearly accessible to them.

- Mechanisms to protect victims from secondary victimization. On numerous occasions, the interrogation conducted in police/judicial facilities, as well as the exposure of the victim by having to confront the aggressor or testify on several occasions, leads victims to withdraw their complaint. Therefore, we consider it especially important to train key personnel on the treatment these victims should receive through specific protocols designed to address these types of crimes.

- Creation of specialized hate crime units. In Spain, a specialized unit already exists for these types of crimes within both the Public Prosecutor's Office and the National Police and Civil Guard. However, it is crucial that the operating criteria be the same throughout the country. Therefore, we reiterate the importance of ongoing training and the establishment of specific protocols.

- Training and awareness-raising for all involved agents. We reiterate the importance of ongoing and mandatory training for key agents, not only in how to treat victims but also in the correct identification of conduct that constitutes a criminal offense.

- Guarantee a prompt, individualized assessment of specific protection needs. It is necessary to ensure the victim's safety. To this end, each case must be studied individually to determine the victim's needs, including the risk of recidivism, vulnerability, and their environment.

- Facilitate the victim's participation in the criminal process. The victim must be clearly informed of the status of the proceedings. It is important that they know and understand their rights during the process and that they are heard when necessary. – Ensure adequate compensation and explore the role of restorative justice services. Regarding compensation, it is crucial to accurately assess the moral damages in each case, taking into account the victim's circumstances, as well as whether the harm has had an individual or collective impact (which is very common in hate crimes).

- Specialized contact officers for victims of hate crimes. The presence of officers specializing in these types of crimes fosters a climate of trust among victims.

- Awareness campaigns with NGOs to encourage reporting. Ongoing campaigns that generate a real impact and are carried out in collaboration with other institutions.

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